

25STCV26095 25STCV26095

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Case Number: 25STCV26095 Hearing Date: September 23, 2026 Dept: 316

BACKGROUND

Plaintiff Marilyn Jefferson

alleges that she was wrongfully terminated from her role as an Electrical Mechanic Trainee because of undue discrimination and pressure from her superiors.

On March 20, 2026,

Plaintiff filed a first amended complaint ("FAC") against Defendants City of Los Angeles, Los Angeles Department of Water and Power, Jesus Gonzales, Matt Wilson, Daniel Rogers, and John Bietsch. The complaint alleges eight causes of action stemming from the facts alleged above.

On June 10, 2026,

Plaintiff filed three Motions to Quash Defendant's Deposition Subpoenas.

On September 10, 2026,

Defendant City of Los Angeles filed three corresponding oppositions.

On September 16, 2026,

Plaintiff filed three corresponding replies.

TENTATIVE RULING

Plaintiff's three Motions

to Quash Defendant's Deposition Subpoenas are DENIED but the scope of the subpoenas is limited as described herein.

Dr. Rodney D. Collins, NP

Yvette Holman, Dr. John W. O'Donoghue, and Dr. Rivkah Cunin must produce documents responsive to the subpoenas as limited herein within thirty (30) days. No sanctions are awarded.

LEGAL STANDARD

Any party may obtain

discovery by taking the oral deposition of any person, including any party to

the action. (Code Civ. Proc., § 2025.010.) A party desiring to take an oral deposition shall give a notice in writing which states the specification of reasonably

particularly of any materials to be produced by the deponent.

(Code Civ. Proc., § 2025.220,

subd. (a)(4).) A properly served

deposition notice is effective to require a party to attend and to testify, as

well as to produce documents for inspection and copying. (Code Civ. Proc., § 2025.280, subd. (a).)

"If a subpoena requires

the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b) . .

. may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Furthermore, the

Court may "award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (See Code Civ. Proc., § 1987.2, subd. (a).)

DISCUSSION

"[E]ven when discovery of private information is

found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy." (Lantz v. Superior Court (1994) 28 Cal.App.4th 1839, 1854-1855.) "[I]f an intrusion on the right of privacy is deemed necessary under the circumstances of a particular case, any such intrusion should be the minimum intrusion necessary to achieve its objective." (Ibid.)

A "[p]laintiff is not compelled, as a condition to entering the courtroom, to discard entirely [his or] her mantle of privacy." (Vinson v. Superior Court (1987) 43 Cal.3d 833, 841.) A plaintiff who has filed a lawsuit has not completely waived his or her right to privacy by bringing suit; rather, the implicit waiver of a party's constitutional right to privacy "encompasses only discovery directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit." (Id. at p. 842; see also Hale v. Superior Court (1994) 28 Cal.App.4th 1421, 1424 ["even if part of Hale's medical condition is in issue, it does not follow that Hale waived the privilege as to otherwise protected aspects of her medical history during her lifetime, or some condition she may have suffered from at the time of her death clearly unrelated to the accident"].)

The burden is on "the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion," and then the court must "weigh the countervailing interests the opposing party identifies." (Williams v. Superior Court (2017) 3 Cal.5th 531, 557.)

Here, Plaintiff moves to quash Defendant's subpoenas to Dr. Rodney D. Collins, NP Yvette Holman, Dr. John W. O'Donoghue, and Dr. Rivkah Cunin. Plaintiff seeks to quash the subpoenas on the ground that they are overly broad and will lead to unnecessary disclosure of private information that is not relevant to this specific matter.

Given that the arguments regarding the three deposition subpoenas are not substantially different, the Court will evaluate them together

I.

The

Deposition Subpoenas

The Court finds that

the requested documents are very likely relevant to this matter.

Plaintiff has placed her psychological condition at issue in the lawsuit and it is a critical issue to both liability and damages. (See FAC, ¶ 14(e), 15(b), 15(d), 17.) Further, each of the providers to whom the subpoenas are directed were identified by Plaintiff in discovery responses as health care providers from whom she received treatment for the injuries she attributes to Defendants in this case. (See Shea Decl., Ex. A.) Therefore, the Court finds it reasonable for Defendant to request documents relating to Plaintiff's mental condition from these providers. The documents will help illustrate the extent of Plaintiff's condition, whether that condition stems from Defendant's alleged conduct, whether Plaintiff's requests for accommodations were reasonable, and whether Plaintiff could return to work. Accordingly, the relevance of the requested documents is clear.

Plaintiff contends there

are privacy concerns that justify quashing or at least limiting the scope of the subpoena. More specifically, Plaintiff contends that the request is overly broad and will lead to the unnecessary disclosure of other irrelevant medical information.

The Court agrees with Plaintiff

that Plaintiff's decision to place a medical condition at issue does not open her entire medical history to unrestricted scrutiny and that she maintains a strong privacy interest in keeping her medical records and information free from unnecessary disclosure. However, after balancing the interests, the Court finds the breadth and scope of the subpoenas reasonably limits any intrusion of Plaintiff's privacy rights. First, the deposition subpoenas are directed at Plaintiff's mental health providers as identified by Plaintiff in this case. Therefore, the documents to be produced should relate only to Plaintiff's mental health. Second, the subpoenas are limited to documents from 2023 forward, a relatively narrow timeframe that will exclude any prior condition not manifesting itself during the relevant timeframe.

The Court believes the

subpoenas should be further limited, however, to be explicitly limited to only documents related to mental health. The Court also believes that a protective order would be appropriate to maintain confidentiality of any produced documents, and potentially an attorneys' eyes only designation, but leaves that to the parties

to negotiate and submit for approval.

With these limitations,
the Court finds the subpoenas reasonably balance Defendants' right to relevant information to defend themselves against Plaintiff's claims with Plaintiff's privacy interest in her medical records. For these reasons, the Court will deny the motion but limit the subpoena as stated above.

II.

Monetary

Sanctions

Defendant requests monetary
sanctions. However, the Court does not believe that imposing sanctions is just and reasonable in this instance.

Plaintiff brought these
motions to ensure her medical privacy was protected. As discussed above,
Plaintiff has a strong interest in ensuring this interest is not improperly
disclosed and the Court finds that Plaintiff had reasonable justification to file
the motions. Further, the Court has further narrowed the subpoenas in this
ruling.

The Court finds that Plaintiff's
motions were justified and made in good faith and will not order monetary sanctions.
(See Code Civ. Proc., § 1987.2, subd. (a).) Accordingly, the Court
will not order

CONCLUSION

Plaintiff's three Motions
to Quash Defendant's Deposition Subpoenas are DENIED but the scope of
the subpoenas is limited as described herein.

Dr. Rodney D. Collins, NP

Yvette Holman, Dr. John W. O'Donoghue, and Dr. Rivkah Cunin must produce documents
responsive to the subpoenas as limited herein within thirty (30) days. No
sanctions are awarded to Defendant.